

John Holte, of Stubley, Esquire.

Vol. xxiii.
No. 53.
8 Jan.
1622-23.

Inquisition taken at Manchester, 8 Jan., 20 Jas. [1622-3], before *John Greehalgh*, *Radcliffe* and *Alexander Butterworth*, Esqs., *Hugh Rigby*, Esq., Deputy Escheator, and *John Haworth*, gentleman, Deputy Feodary of the County, Commissioners, after the death of *John Holte*, late of Stubley,¹ Esq., by the oath of *Abel Buckley* of Buckley, Esq., *John Cudworth* of Wernith, *John Hutton* of Sinderland, *Henry Keley* of Manchester, *Miles Andrewwe* of Lees, *John Hopkin* of Lees, *Robert Bardsley* of Waterhouses, *Abraham Stansfield* of Hamer, *Thomas Newton* of Woodhouses, *Edward Massie* of Manchester, *Thomas Ashton* of Redish, *John Smith* of Ashton, *Edmund Haywood* of [Tanton], *Robert Taylor* of Hurshedge, *Richard Smith* of Litlemosse, *Edward Walker* of Ashton, *James Chadwicke* of Roughbancke, *John Clough* of Woodhouses, *Charles Bexwicke* of Failesworth, *Edmund Whitehead* of Birchinlee, and *James Travers* of Waterside, gentlemen, who say that *John Holte* was seised in fee of the manors of Hundersfield,¹ Spotland,¹ and Castleton,¹ of 90 messuages, 2 water-mills, 1,200 acres of land, 300 acres of meadow, 1,200 acres of pasture, 100 acres of wood and under-wood, and 3 acres of moor, moss, furze, and heath in Hundersfield, Spotland, Rachedale, Buric, Castleton, Butterworth,¹ Middleton, and Tottington;² of 2 messuages, 20 acres of land, 5 acres of meadow, and 15 acres of pasture in Butterworth, lately purchased by him (*John Holte*) for himself and his heirs of *Gerrard Scolfield*, *Henry Tong*, One *Mary Tong*, then wife of *Henry Tong*, now deceased, was then entitled to dower of all the premises aforesaid, of the gift of *Charles Holt*, late her husband, and late father of *John Holt*, named in the Commission. He, being so seised, and the said *Mary* so entitled to dower, by an Indenture tripartite, dated 13 March, 43 Eliz. [1599-1600], and made between himself of the first part, *Henry Tonge* of Denton, in the county of Durham, Esq., and *Mary*, then his wife, of the 2nd part, and *Nicholas Bannester*, of Altham, Esq., *Alexander Butterworth*, of Butterworth, Esq., *Abraham Belfield*, of Cleggeswood, and

¹ In Rochdale parish.

² In Bury parish.

Robert Walkden, of Wardley, yeoman, of the 3rd part, it was agreed, for the considerations therein mentioned, that *John Holte*, *Henry Tong* and *Mary*, his wife, before the Feast of Easter then next following, should levy a Fine at Lancaster to the aforesaid *Nicholas Bannester* and *Robert Walkden*, or the survivor of them, and the heirs of one of them, of all the premises aforesaid, and that the said Fine should be for so much of the premises whereof any Common Recovery should be suffered to the use of such "Comisees" to the intent to make them perfect tenants of the premises, viz.:—As to the capital messuage of Stubble, and all the houses, buildings, orchards, gardens, &c. thereto belonging in Stubble, and as to 1 water-mill, and soc, suit, multure, and water-courses to the said mill belonging in Stubble, which said capital messuage, houses, &c. time out of memory have been parcel of the premises above mentioned in Hundersfield and Butterworth, to the use of *John Holte* and his assigns for the term of 80 years then next following, if *Mary Tonge* should so long live, provided that *John Holte* and his assigns should yearly during the term pay to *Henry* and *Mary*, during the life of *Mary*, a certain yearly rent on the days mentioned in the said Indenture in manner and form following:—During the joint lives of *Henry* and *Mary*, at the mansion of the said *Henry*, in Denton, in the county of Durham, and, in case of his decease during her lifetime, then to the said *Mary* or her assigns for life, at Stubble Hall. And upon the determination of the said term of years, or by "effluxion of tyme" or otherwise, then as follows:—As to the capital messuage of Stubble, &c. to the sole use of *Henry* and *Mary* and their assigns for the life of *Mary*; and from and after her decease to the use of *John Holte* (named in the Commission) and the heirs male of his body; and for default to the use of divers other persons named in the said Indenture, in fee tail, with remainder or reversion thereof to *John Holte* and his heirs for ever. If the said yearly rent should not be paid every year during the term aforesaid, the said *Henry* and *Mary* and their assigns (during the life of *Mary*) should quietly hold to their own proper use all the said premises in Stubble. As to all that capital messuage commonly called "Castleton," and the lands and hereditaments to the same belonging, and 1 water-

mill in Castleton, then or lately in the tenure of *John Holt* or his assigns, and as to all the other premises in Castleton wherein the said *John* then or at any other time after the death of his father (*Charles*) had any estate; which said capital messuage and other the premises last mentioned are, and time out of memory have been, parcel of the premises in Castleton. And as to 1 messuage and tenement in Haslomhey, within the parish of Bury, then or lately in the tenure of *Michael Bentley*, being parcel of the premises aforesaid in Bury; and as to 1 messuage called "Newhall" and certain shops and cellars to the same belonging situate in Rachedale, then or lately in the tenure of *John Holt* and his assigns (parcel of the premises in Rachedale whereof *John Holte* was seised as of fee), to the use of *John Holt* and *Dorothy* his wife and their assigns for their lives and for the life of the survivor of them, in the name of jointure for the said *Dorothy*, and in lieu of her dower; and, after the decease of both of them, then to the use of *John Holt* and his heirs male; and for default then to divers other uses specified in the said Indenture, with remainder or reversion thereof to *John Holte* and his heirs for ever. And as to the residue of all the premises wherein no use was before limited, to the use of *John Holt* and his heirs male; and for default to divers other uses, with remainder to *John Holte* and his heirs for ever, as by the said Indenture shown to the Jurors appears.

John Holte being so seised, a Fine was levied at Lancaster on Monday, in the 5th week of Lent, 43 Eliz. [1601], between *Nicholas Bannester* Esq., and *Robert Walkden*, plaintiffs, and *John Holte*, *Henry Tonge*, Esq., and *Mary*, his wife, deforciant, of all the premises aforesaid by the name of the manors of Naden and Chesam, 200 messuages, 2 mills, 200 gardens, 1,000 acres of land, 200 acres of meadow, 1,000 acres of pasture, 500 acres of moor, 500 acres of furze and heath, and 100s. rent in Naden, Chesam, Hundersfield, Spotland, Butterworth, Castleton, Bury, and Middleton, to the intent to make *Nicholas Bannester* and *Robert Walkden* tenants in freehold of all the premises aforesaid, by virtue whereof they might suffer a Common Recovery to be had against them according to the agreements aforesaid, as by a Transcript of the Fine shown to the Jurors in evidence appears.

On Monday, in the 5th week of Lent, 43 Eliz. [1601], out of the Court of Chancery at Lancaster *Alexander Butterworth* and *Abraham Belfield* sued a writ of *Ingressu super disseisin in le Post* against *Nicholas Bannester* and *Robert Walkden* of all the premises aforesaid, &c. [Here follows a full account of the case.] It was, therefore, considered by the Court that the said *Alexander* and *Abraham* should recover their seisin against *Nicholas* and *Robert*, by virtue thereof they (*Alexander* and *Abraham*) entered into and were seised of the said premises. By pretext whereof, and by force of the Statute of Uses, *John Holt* was respectively possessed and seised of all the said premises, for the several estates charged and chargeable as aforesaid, with remainder and reversion thereof as aforesaid, and he died being so seised thereof.

Henry Tonge died 26 Nov., 13 James [1615], at Denton ; *Mary*, his widow, still survives at Castleton.

On 24 Aug., 20 James [1622], at Castleton, *John Holt* made his Will in writing, and appointed *Dorothy*, his wife, and *Robert Holt*, his son and heir, executors thereof, as by the said Will, shown to the Jurors in evidence, appears.

The yearly rent above mentioned and limited to be paid to *Mary Tonge* was so paid by *John Holt* from time to time during his lifetime, and after his decease the said sum, or so much thereof as had accrued to be payable, was in like manner paid by *Dorothy* and *Robert*.

The manors, messuages, lands, and other the premises in Hundersfield, Butterworth, Spotland, and Tottington (except the 2 messuages in Butterworth lately purchased by *John Holt* of *Gerrard Scholfield*) are held of *the King*, as of his Duchy of Lancaster, by knight's service, viz. by the 40th part of a knight's fee and by 26s. yearly rent, and are worth per ann. (clear) £20. The manor of Castleton, together with the messuages, lands, and other the premises in Castleton (except certain lands and tenements there containing 100 acres of land and 220 acres of waste, in the several tenures of *Alexander Holt*, *David Holt*, *Edmund Duorden*, *Roger Chadwick*, *John Scolefield*, *James Scolefield*, *Richard Holt*, *Robert Colling*, *Anthony Mylne*, and *Robert Gorrell* or their assigns, and formerly purchased by *Charles Holt*, father of *John Holt* named in the writ, for himself and his heirs of

William Gryse and *Charles Newcomen*; and except 4 messuages or tenements in Balderston within Castleton, now or lately in the several tenures of *Richard Witworth*, *James Whitworth*, *Otwell Worrall*, and *Edmund Feild*, or their assigns, and formerly purchased by *Charles Holt* for himself and his heirs of *John Talbot*, Esq.), are held of *the King in capite* by knight's service, viz. by the 10th part of a knight's fee and by 22s. 4½*d.* yearly rent, and are worth per ann. (clear) £6. 10s. The lands, tenements, and other the premises in Castleton (before excepted) are held of *the King*, as of his manor of East Greenwich, by fealty only, in free socage, and not *in capite* or by knight's service, and are worth per ann. (clear) 40s. The 4 messuages and tenements and other the premises in Balderston within Castleton (before excepted) are held of *the King*, as of his Duchy of Lancaster, by the 100th part of a knight's fee, and are worth per ann. (clear) 5s. The messuages, lands, and other the premises in Bury are held of the Most Noble *William*, Earl of *Derby*, as of his manor of Bury, in socage and by the yearly rent of 4s. 4*d.*, and are worth per ann. (clear) £6. 10s. The messuages, and other the premises in Middleton, in Salfordshire, are held of *the King* by reason of the custody of *Ralph Ashton*, of Middleton, Esq., then and now in the custody of *the King* during his minority, in free socage, and are worth per ann. (clear) 10s. 4*d.* Of whom or by what service the 2 messuages in Butterworth (before excepted) are held the Jurors know not, and they are worth per ann. (clear) 10s.

John Holte died at Castleton 29 Aug. last past [1622]; *Robert Holte* is his son and heir, and at the time of his father's death was aged 20 years 14 days and no more. *Dorothy*, late wife of *John Holt*, is yet alive at Castleton.

Charles Butterworth, of Turnough.

Vol. xxiii.
No. 49.
8 Jan.
1622-23. **I**nquisition taken at Manchester, 8 Jan., 20 James [1622-23], before *Edward Rigby*, Esq., Escheator, after the death of *Charles Butterworth*, late of Turnough, in